ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	39th Commission Meeting
DATE:	10 August, 2021
TIME:	02:00 PM
VENUE:	CP's Chamber

#	AGENDA	DECISIONS
1	ToT for ECCD facilitators on 'The DAMTSI Activity Book' – ED DAMTSI: *Developing Accountable, Moral and Trustworthy and Successful Individuals*	In continuation to the decision of the 38th Commission meeting, the Commission delegated Commissioner A Karma Rinzin to grace the ToT in Trashigang on 23 August 2021 for Eastern Region and Commissioner Jamtsho in Paro on 30 August 2021 for Western Region. The ToT in Tsirang on 18 & 19 August 2021 for the Central Region to be graced by the Chairperson coinciding with the SLDP organized by the RIGSS.
2	Evaluation of APT for the FY 2020 – 2021 – PPS	The Commission reviewed the scores assigned for each SIs by the Joint Evaluation Team based on the targets achieved. In general, the Commission endorsed the scores assigned by the team. However, specific decisions on some of the SIs were as follows: - SI on *Proposal to conduct system study on CCP and proposal to develop IAM tool completed and adopted:* Both the proposals were developed and submitted to the Commission. However, IAM proposal was not adopted based on the Commission's directive to withhold for further enrichment from the experiences and findings of the CCP study. Hence, the SI was rated as completed and accordingly scored under '*Excellent*' target. - SI on *Agency NIA 2019 reports developed & disseminated* was planned and ready before January 2021 but was deferred by the Commission to strategically sensitize the NA and NC at the outset. However, due to non-availability of NA & NC members (conducted only in April 2021), the sensitization to the agencies were further delayed thereby affecting the completion deadline for sensitization. Despite these unavoidable circumstances, the dissemination program ensured wider coverage (89 agencies) with some notable outcomes like the ethical leadership assessment survey. Hence, the score was revised as '*Excellent*'. - SI on *ACC performance score* could not be completed in the FY due to non-availability of TI Berlin to conduct the assessment. Nonetheless, managed to sign contract with

TI within June 2021 and even initiated payment of first installment to conduct the assessment in the FY 2021 – 2022. Hence, in view of external factor, the SI was scored '*Good*' using the last standing score of '*72*' of the 2015 assessment. Similar scoring was adopted by the Commission for APT evaluation in the FY 2018 – 2019 for SI *Administration, Finance and Procurement Services performed as per the rules and procedures applicable.*

- SI on *Construction of Office building at Phuntsholing completed,* could not be undertaken in the FY due to external factors. Hence, the SI was not rated. Rather, it was decided to rate the ACC's APT performance against the total of 98 weights, excluding 2 weights for this SI. The Commission directed to exclude such uncertain SIs in the future APTs.
- SI on *Long-term institutional development plan for the ACC developed* was deferred upon the Commission's directive. Hence, the SI was scored '*Excellent'* since the proposal to develop the plan was presented to the Commission in April, 2021.

Other specific directives of the Commission on the evaluation were as follows:

- Related to the SI *NIACS implementation reviewed and monitored,* the Commission directed PD and PPS to coordinate NIC in the month of October this year, without further delay.
- Given the challenges to bring private and corporate sectors on board, the Commission directed the PD to review integrity programme for business sectors in keeping with the ACAB amendment on corporate liability in the coming FY.
- Directed DoI, DoPS & PPS to review SIs on *Average TAT for investigation and TAT to conduct IE* to measure actual time taken to complete an investigation/IE from the date of case assignment to disposal. The current practice of only taking into account the man-days involved irrespective of how it spreads over the years is not clear.
- Directed PPS to assign consecutive numbers to Quarterly Staff Meetings for all the meeting conducted during the current Commission's tenure.
- Directed to focus on media management in the next FY for greater momentum of media engagement.
- Directed to assign the responsibility and accountability for the SI on *Percentage of annual budget utilization* to the respective Department/Division heads, instead of AFS, from the next APT.
- Directed AFS to recall and implement decisions of the Commission accorded during the presentation of Disaster

		Contingency Plan on 29th June 2021. - The weights assigned to Departments/Divisions/Services need to be revisited in future APTs based on the focus of the ACC on different functions as well as proportion of human resources, besides the nature of activities and share of budget allocation. To this, the overall score of the ACC's APT for the FY 2020 – 2021 against total weight of 98 is 91.4, which is 93.27 percent. Individual scores of the each Department/Division/Service is DoPE: 95.55%; DoI: 91.09%; DoPS: 90.40%; TSD: 97.27%; LD: 96.67%; and SECT: 92.27%.
3	Final APT for the FY 2021 – 2022 – PPS	The Commission reviewed some of the SIs proposed to be revised in keeping with the limited budget secured for the FY 2021 – 2021. The Commission decided as follows: - Target value for SI *NIACS implementation reviewed and monitored* reduced from 4 to 3. This is after dropping initial plan to conduct ex-country training for NIC & IC members as proposed budget was not approved. However, other activities such as i) conducting NIC, IC & other related meetings, ii) developing capacities of OIP focal persons, and iii) conducting OIP evaluation were retained. - Activities related to SI on *CSO Engagement Programme on Anti-Corruption & Justice implemented* was directed to be retained but in view of limited budget it may be revisited during the Mid Term Review (MTR) of the APT. - Specific activity to conduct CRM refresher training to the IAs under SI on *Corruption risk assessment studies facilitated & conducted* was directed to be implemented in consultation with the MoF. Any withal due to budgetary limitations, may be revisited during the MTR. - Activity to conduct capacity development of private sectors under SI *Business Integrity Initiative of Bhutan (BIIB) implemented* was directed to be replaced with new activity to review the BIIB program in line with ACAB amendment to reinforce integrity promotion in business sector. - Directed to retain all the activities under SI *Youth Integrity Program (YIP) implemented* but may be reviewed in the MTR. However, reiterated that the priority of the Commission will be to roll out ECCD module successfully. In the meantime, directed ED to revisit implementation approach of promoting integrity clubs in schools rather than merely increasing the number of integrity clubs.
4	Resolution of the 5th Session of the Third Parliament – PPS	Two of the three resolutions of the 5th Session of the Third Parliament are required to be implemented by the ACC. Hence, the Commission directed the RD to present the draft research report on Corruption in Policy Making. Accordingly, as per the

		resolution, corruption risk assessment in the policy-making processes may be strategized.
5	Any other: i) Preparation of Annual Report 2020 – 2021	The Commission directed all Department/Divisions/Services to expedite preparation of the Annual Report 2020 – 2021 and submit for consolidation and further analysis.
	ii) Follow-up of 38th Commission meeting to review the need to share experiences during virtual meetings of UNCAC	Decided not to volunteer in the upcoming meetings of UNCAC but to explore in the future.

Commissioner **Commissioner** **Chairperson**